

How digital rights activists rein in regulatory entrepreneurs: the case of Clearview AI

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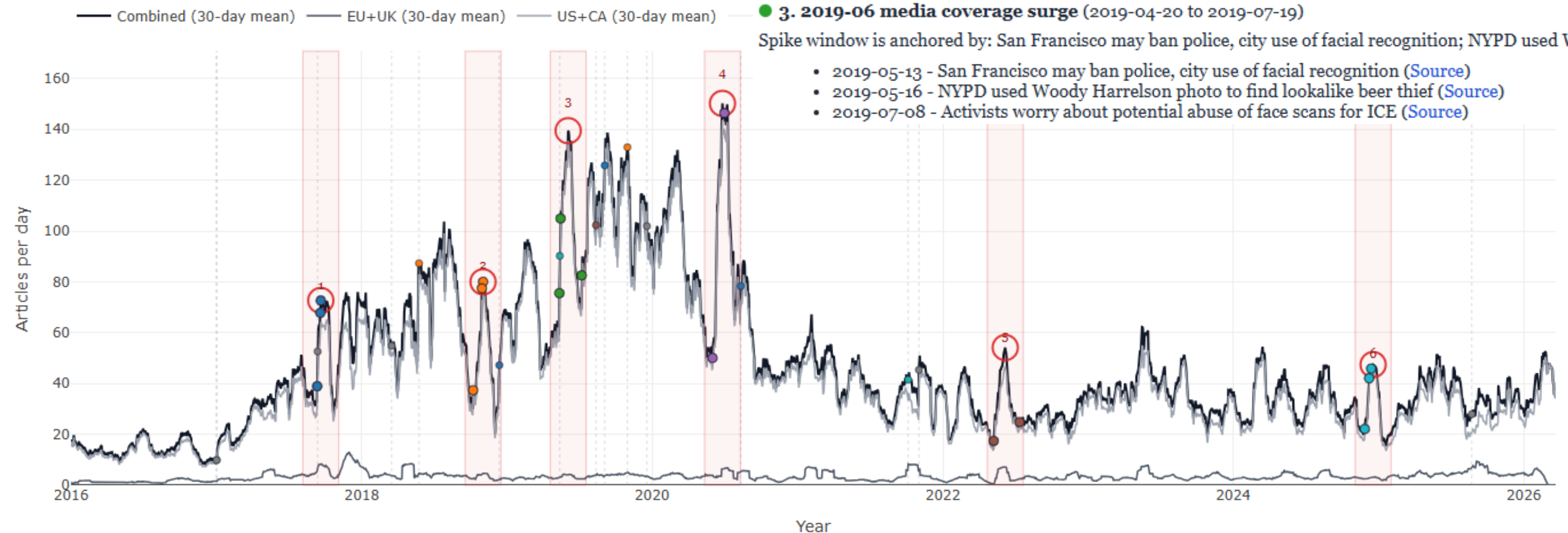


Background and data collection

1. Initial interest in the role of grassroots activism in the governance of technology companies' practices related to the collection and use of personal online data
2. We scraped online media articles in English across Europe and North America to analyze coverage of facial recognition in general, and Clearview AI in particular
3. We interviewed key members of digital right activist groups in Europe and North America (many of them lawyers and hackers) – 28 online interviews so far, about 60 minutes per interview on average
4. We are using a qualitative thematic and longitudinal approach to analyze data collected and interpret our findings

Facial recognition media coverage

Combined line is EU+UK+US+CA; first key moment is the 2017-2018 spike.



Regulatory entrepreneurs

- Companies that strategically exploit laws and regulations to secure advantages (Sytsch & Kallapur, 2026)
- Pervasive in tech because it evolves faster than regulators can catch up
- The "break-things " strategy: Uber, Airbnb, Open AI

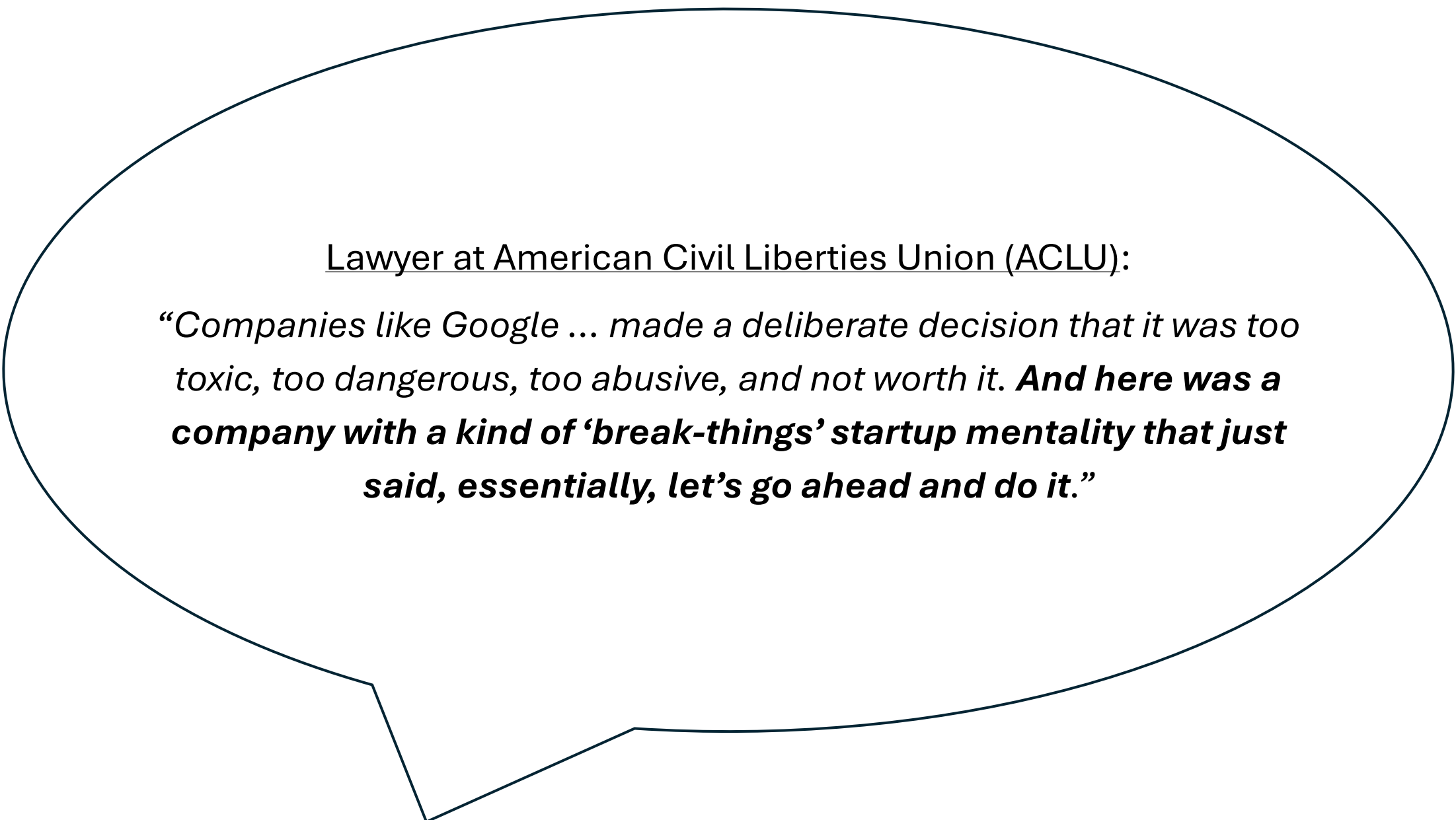
A number of high-profile companies have devoted enormous amounts of time and money to entering lines of business that are legally fraught; the applicable laws are unclear, unfavorable, or both. These companies' fortunes—whether they will be bankrupt or worth billions¹—often depend not only on the whims of the markets, but also on the resolution of legal issues concerning a core aspect of their business. These companies understand this, and each makes changing the law a material part of its business plan. We call this activity “regulatory entrepreneurship,” and refer to the companies that engage in it as regulatory entrepreneurs.

Barry & Polman, 2017



- Hoan Ton-That is a self-taught computer engineer who went to Silicon Valley to get rich quick by any means
- In 2017, Ton-That founded Clearview AI and sought to keep it operating "under-the-radar"
- Since then, the company has gathered a database of billions of photos from people around the world scraped on the web without consent





Lawyer at American Civil Liberties Union (ACLU):

*“Companies like Google ... made a deliberate decision that it was too toxic, too dangerous, too abusive, and not worth it. **And here was a company with a kind of ‘break-things’ startup mentality that just said, essentially, let’s go ahead and do it.**”*

What is Clearview AI?



A **biometric** search engine for faces



Marx (Chaos Computer Club) & Dahi (NOYB), 2020
<https://marx.wtf/2020-11-FnF-Clearview.pdf>

Law professor specialized in digital privacy:

“Clearview AI is ... a company that saw the gaps in regulation around ... the [digital] exposure that we all are party to as we give up our information ... to our friends and family on social media and every other place. They recognized that this data ... can be transformed into some valuable commodity. And their commodity of choice was to create a facial recognition database from all the scraped data. ”

- In 2020, Kashmir Hill, a New York Times investigative reporter, broke the story that "outed" Clearview AI

The New York Times

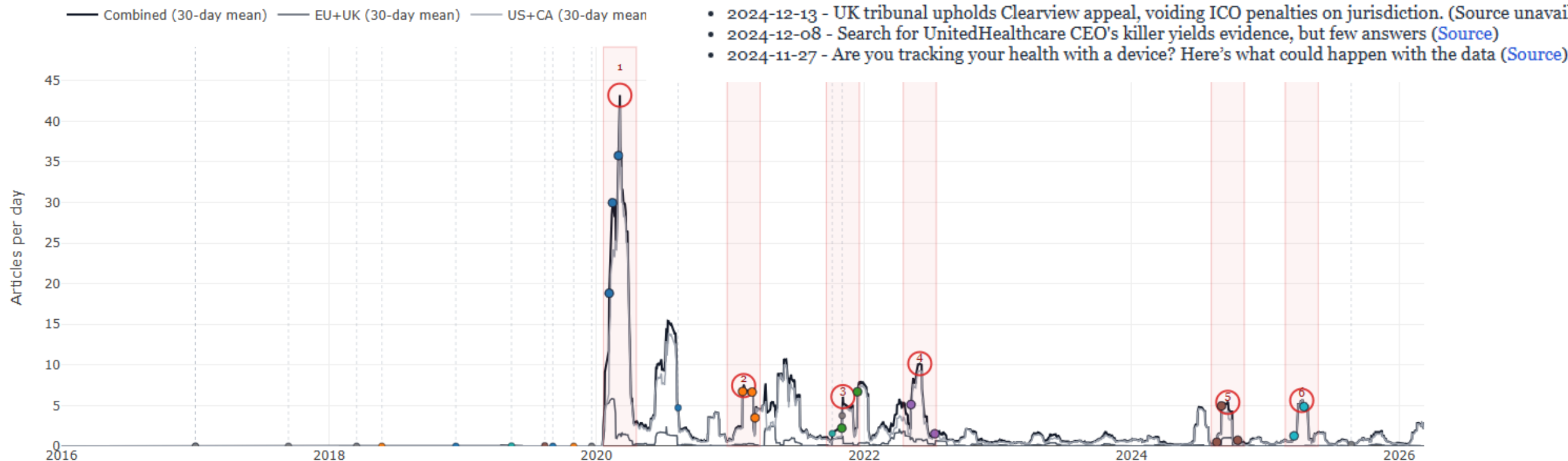
The Secretive Company That Might End Privacy as We Know It

A little-known start-up helps law enforcement match photos of unknown people to their online images — and “might lead to a dystopian future or something,” a backer says.

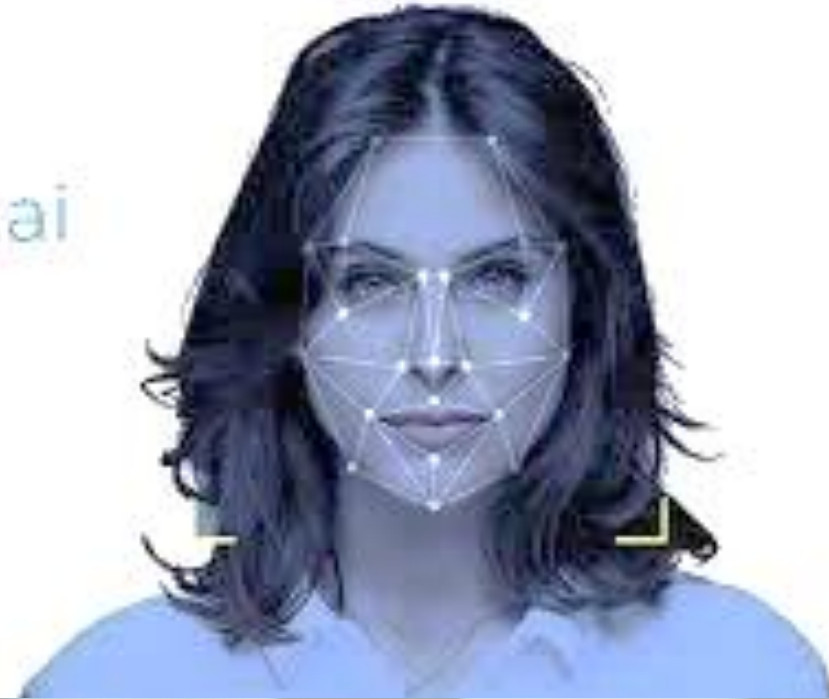


Clearview AI media coverage

Combined line is EU+UK+US+CA; key moments begin from the first major 2020 surge.



Activist groups across Europe and North America start pursuing the case



CNN BUSINESS

Clearview AI has billions of our photos. Its entire client list was just stolen

By Jordan Valinsky, CNN Business



Clearview's Facial Recognition App Has Been Used By The Justice Department, ICE, Macy's, Walmart, And The NBA

A BuzzFeed News review of Clearview AI documents has revealed the company is working with more than 2,200 law enforcement agencies, companies, and individuals around the world.



Ryan Mac
BuzzFeed News Reporter



Caroline Haskins
BuzzFeed News Reporter



Logan McDonald
BuzzFeed Staff



SURVEILLANCE AND CONTROL

The hacker who spent a year reclaiming his face from Clearview AI

Matthias Marx has spearheaded an international campaign to place more controls on facial recognition technology

BY ISOBEL COCKERELL 19 JULY 2021 Q&A

Matthias Marx is a hacker and researcher studying security systems from Hamburg, Germany. For a year, he pursued the controversial facial recognition company Clearview AI after lodging a complaint with the Hamburg Data Protection Authority that the company was using his

Research question:

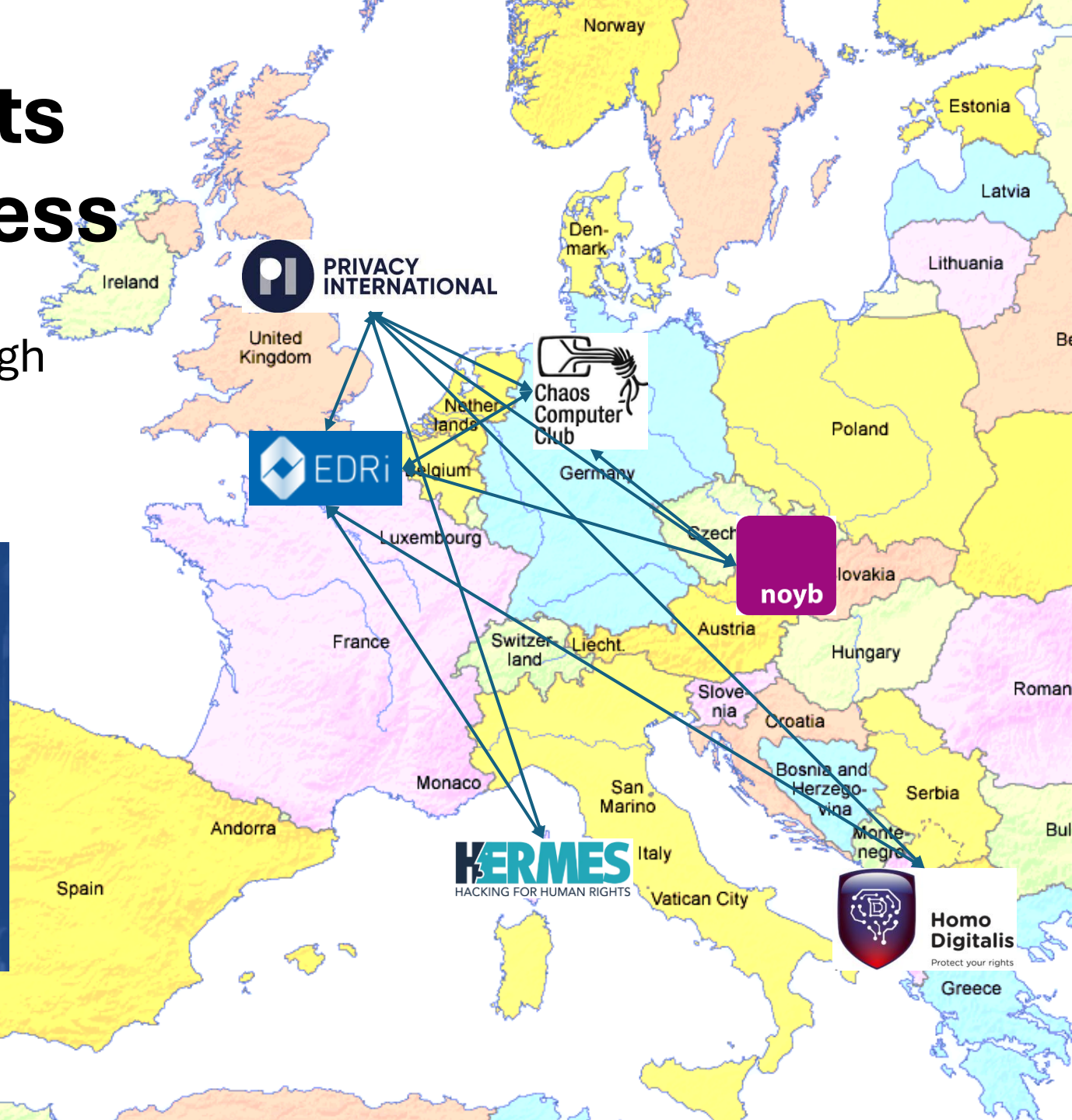
**How do digital rights activists
rein in regulatory entrepreneurs?**

Digital rights activists raise public awareness

- In fall 2020, activists coordinate through EDRi to launch the #ReclaimYourFace campaign



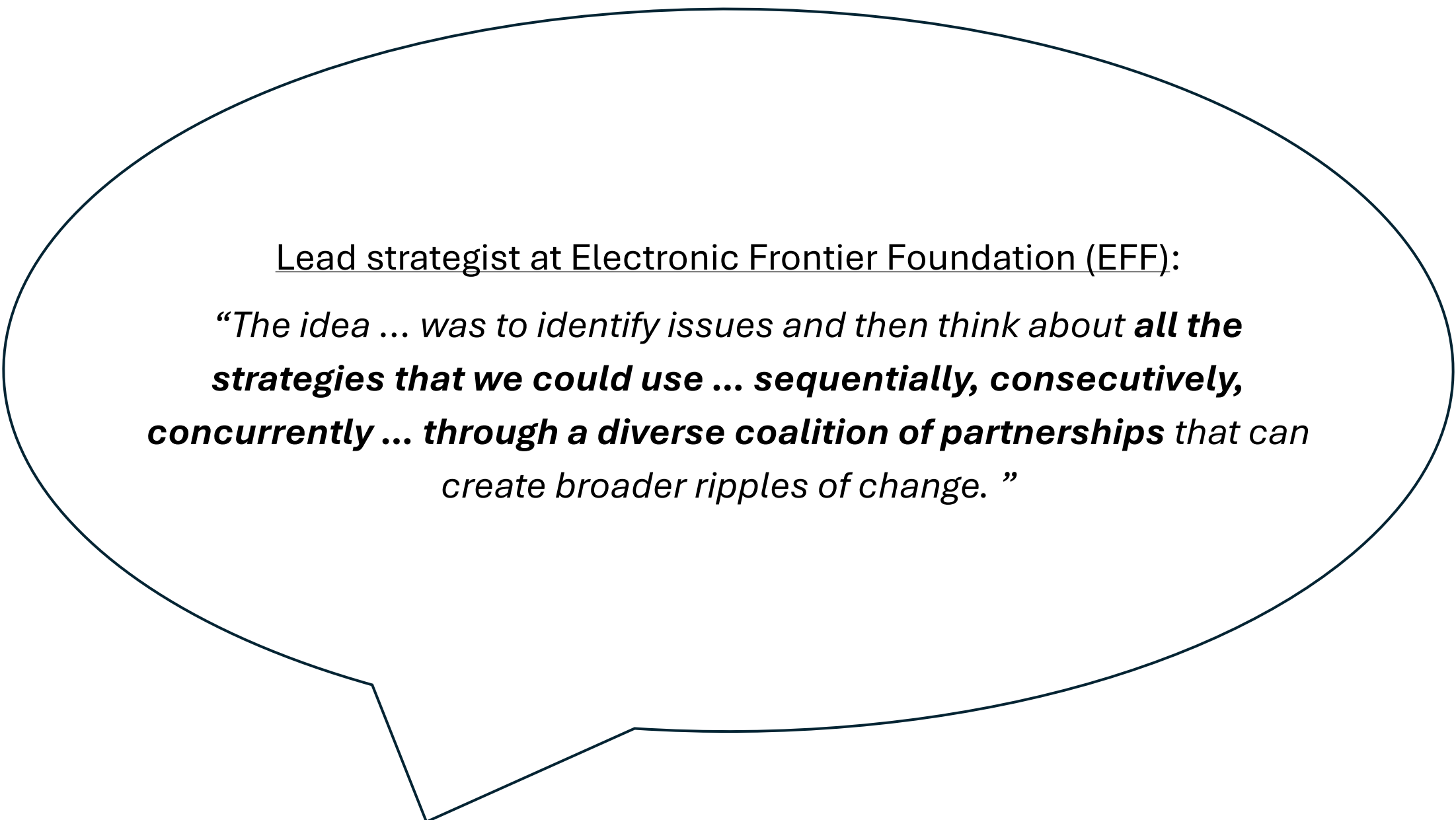
<https://reclaimyourface.eu/>



Digital rights activists file legal complaints

- In spring 2021, activists file coordinated complaints across Europe, leading to record fines in Italy (€20M), Greece (€20M), France (€20M), UK (£7.5M) in 2022 and in Netherlands (€30.5M) in 2024

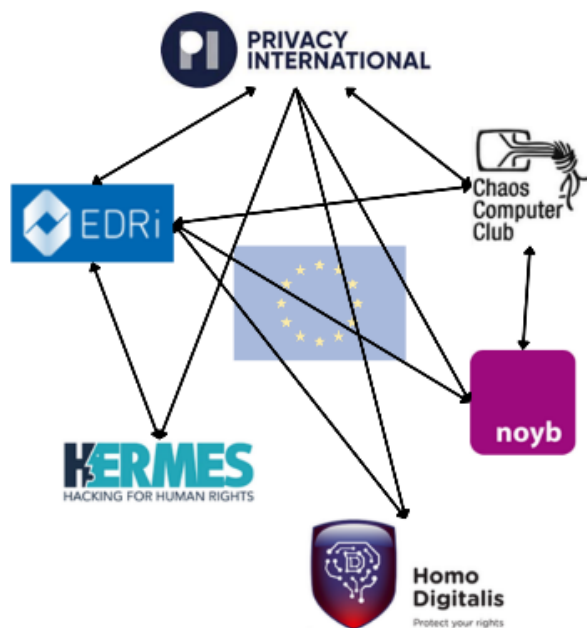




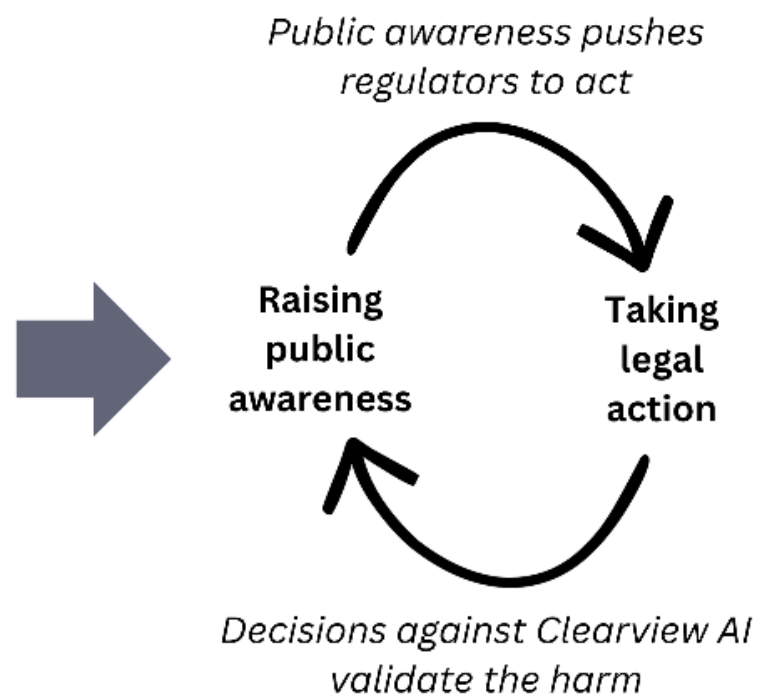
Lead strategist at Electronic Frontier Foundation (EFF):

*“The idea ... was to identify issues and then think about **all the strategies that we could use ... sequentially, consecutively, concurrently ... through a diverse coalition of partnerships** that can create broader ripples of change. ”*

Decentralized coordination

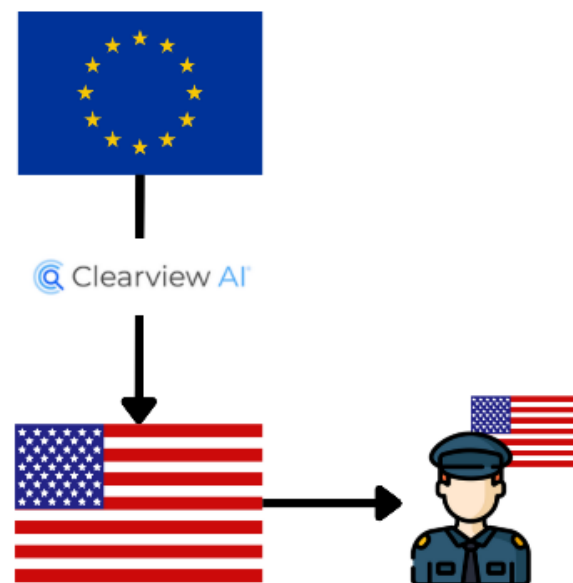


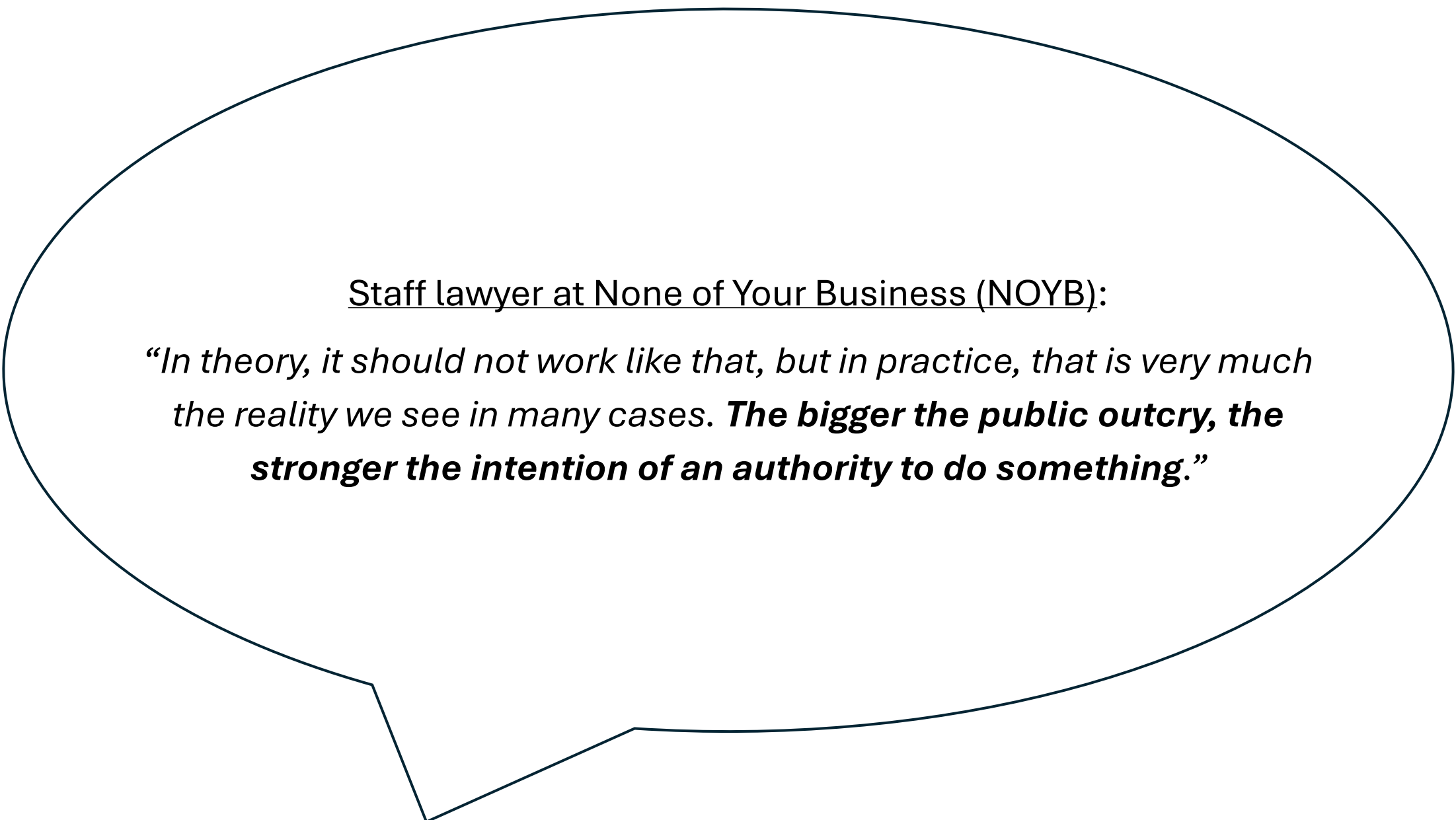
Integrated advocacy



Market deterrence effects

Clearview AI retreats to more hospitable markets





Staff lawyer at None of Your Business (NOYB):

*“In theory, it should not work like that, but in practice, that is very much the reality we see in many cases. **The bigger the public outcry, the stronger the intention of an authority to do something.**”*

Questions? Comments? Feedback?

